

Chapter 13 — Licensing and ethical considerations

Openness is not unlimited

Learning objectives

- By the end of this part

Open license menu

- Creative Commons covers CC0, CC BY, CC BY-SA, CC BY-NC, and CC BY-NC-SA
- Open Data Commons adds database-oriented paths: ODC-By, ODbL, and PDDL
- Companion code beside a dataset usually needs a software license such as MIT
- License choice follows the intended reuse, not the row layout of a CSV

Choosing from the use case

- Ask whether the release is sensitive or community-controlled
- Public-domain paths suit government tables
- Practice these paths in the course license chooser

Licenses and the privacy trade-off

- Responsible open science depends on clear licenses and ethical constraints
- Some teams draft custom or restricted licenses that limit redistribution
- Privacy principles and techniques are developed in Chapter 3
- An unrestricted open license signals broad reuse and is appropriate only after privacy

Example 13.26 — Restricted Licenses for Health Data

- Example 13.26 — hands-on module
- Example 13.26 illustrates restricted licensing for sensitive health data
- Use may be limited to qualified researchers or specific contexts such as academic or
- Even de-identified data may remain re-identifiable when combined with other releases
- Explore the chapter example module
- View files: ``modules/chapter13/example26/``

Ethical obligations after sharing

- Ethical principles for collection and privacy are covered in Chapter 3
- Open science adds obligations that arise from making data public
- Researchers should document scope and limitations
- Consent obtained during collection must also cover the intended public release

Example 13.27 — Avoid Reinforcing Bias with Open Data

- Example 13.27 — hands-on module
- Ethical concerns do not end when data are shared; they extend to reuse
- Example 13.27 warns against discriminatory reuse of hiring or healthcare datasets
- Such data should not be used to reinforce biases or perpetuate systemic inequalities
- If data reveal disparities
- View files: ``modules/chapter13/example27/``

Example 13.28 — Indigenous Control Over Shared Data

- Example 13.28 — hands-on module
- Open science must respect the rights and wishes of people and communities whose data are
- Communities involved in collection
- Example 13.28 emphasizes that Indigenous communities involved in ecological or
- Explore the chapter example module
- View files: ``modules/chapter13/example28/``

Takeaways

- Match the license family to the artifact
- Restricted access, not an open deed, for sensitive health or community-controlled data
- License choice must follow a privacy assessment, not precede it
- Open release creates ongoing ethical duties around bias, security, attribution, and scope
- Including Indigenous communities, retain legitimate control over sharing decisions

Next

- Complete the quiz for this part
- The next part covers reproducible research workflows